



2025:AHC-LKO:61211-DB

**HIGH COURT OF JUDICATURE AT ALLAHABAD
LUCKNOW**

WRIT - C No. - 9431 of 2025

Mohd. Shameem

.....Petitioner(s)

Versus

Managing Director Madhyanchal Vidyut Vitran
Nigam Limited Lko. And 2 Others

.....Respondent(s)

Counsel for Petitioner(s) : Ashok Kumar, Alpana Yadav, Sadaf Sheikh
Counsel for Respondent(s) : C.S.C.

Court No. - 2

**HON'BLE MRS. SANGEETA CHANDRA, J.
HON'BLE AMITABH KUMAR RAI, J.**

1. Heard learned Counsel for the petitioner, learned Standing Counsel appearing on behalf of the State and learned Counsel appearing on behalf of the respondent nos.1 & 2.

2. This petition has been filed with the following main prayer:-

"issue a writ, order or direction in the nature of Certiorari quashing the impugned recovery citation dated 26.8.2025 issued by the opposite party no. 3 as contained in Annexure no. 1 to this writ petition.

issue a writ, order or direction in the nature of Mandamus commanding the opposite parties concerned to correct/ rectify the electricity bills/ dues of the petitioner as per electricity unit reading and provide the correct details of the electricity dues of petitioner and take same in easy installments from petitioner and also not adopt any coercive measures against him for realization of electricity dues from petitioner, in the interest of justice."

3. It is the case of the petitioner that an exorbitant amount has been charged by way of the electricity bill generated by the respondents in an irregular manner. He has also been issued a Recovery Citation of Rs.2,98,000, although he had made a representation to the Executive Engineer on 05.07.2024, which remains un-disposed of.

4. Learned Counsel appearing on behalf of the respondent nos.1 and 2 has pointed out that the petitioner has a statutory remedy under Paragraph 6.5 of the Electricity Supply Code, 2005, wherein in sub-clause (b), it has been provided that if a consumer disputes the accuracy of any bill, he may either make the payment under protest of an amount equal to the sum claimed from him, or the electricity charges calculated on the basis of the average of electricity bills of the preceding six months, whichever is less, and file a complaint with the competent authority before the due date of payment. The complaint shall be decided within seven days and the consumer shall be informed in this regard.

5. The petitioner has not made any representation under Paragraph 6.5 sub-clause (b) of the Code.

6. This petition is ***disposed of*** with the direction to the petitioner to make his complaint under the provisions of Paragraph 6.5 sub-clause (b) of the Code. If such a complaint is made within a period of ten days from today, along with the amount as is required under the provisions of the Code to be deposited, it shall be considered and an appropriate reasoned and speaking order be passed thereon by the Executive Engineer within a period of ten days thereafter.

7. For a period of four weeks or till such decision is taken by the Executive Engineer, the recovery impugned in this petition shall remain in abeyance.

(Amitabh Kumar Rai,J.) (Mrs. Sangeeta Chandra,J.)

October 6, 2025

Rahul